

PETITION - ASK A NORTH DAKOTA COURT TO SEAL A FELONY CONVICTION

IN THE COURT

(Clerk of Court of the existing criminal case - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

PETITION TO SEAL A FELONY CONVICTION (N.D.C.C. Sec. 12-60.1-02(1)(B))

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under N.D.C.C. Sec. 12-60.1-02(1)(b); N.D.C.C. Sec. 12-60.1-03; N.D.C.C. Sec. 12-60.1-04; N.D.C.C. Sec. 12-60.1-01(7); N.D.C.C. Sec. 12-60.1-02(2); N.D.R.Ct. 3.4; N.D.R.Crim.P. 49 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

A person who pled guilty to or was found guilty of a felony may petition to seal the record if they have not been convicted of a new crime for at least five years before filing. The chapter bars a felony offence involving violence or intimidation during the period in which the offender is ineligible to possess a firearm under N.D.C.C. Sec. 62.1-02-01(1)(a), which is ten years from the latest of conviction, release from incarceration, release from parole or release from probation, for offences in chapters 12.1-16 through 12.1-25.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - seal full legal name] What is your full legal name?

.....

.....

[C2 - seal all other names] What other names have you ever used, including maiden names and aliases?

.....

.....

[C3 - seal address history] Where have you lived from the date of the offence until now?

.....

.....

[C4 - seal reasons] In your own words, why should the court seal this record?

.....
.....

[C5 - seal court type] Was the case in district court or municipal court?

.....
.....

[C6 - seal county] Which North Dakota county or municipality?

.....
.....

[C7 - seal case number] What is the case number?

.....
.....

[C8 - seal offence] What were you convicted of?

.....
.....

[C9 - seal criminal history nd] What other North Dakota charges or convictions do you have, past or pending?

.....
.....

[C10 - seal criminal history elsewhere] What charges or convictions do you have in other states, federally, or in another country?

(Asked where the participant reports any out-of-state, federal or foreign record.)

.....
.....

[C11 - seal prior relief requests] Have you ever asked any court or authority to pardon, expunge, seal or return records for any case - whether or not it was granted?

.....
.....

[C12 - seal new convictions] Have you been convicted of any new crime since the offence, and if so when?

.....
.....

[C13 - seal supervision complete] Have you finished all imprisonment and all probation on this case?

.....

.....

[C14 - seal restitution paid] Has all restitution been paid in full?

.....

.....

[C15 - seal registration ordered] Were you ever ordered to register as an offender under North Dakota law?

.....

.....

[C16 - seal prosecutor office] Which office prosecuted the case - a city attorney or the county State's Attorney?

.....

.....

[C17 - seal offence chapter] Which North Dakota Century Code chapter is the offence in? Chapters 12.1-16 through 12.1-25 cover violence and intimidation offences and carry an extra bar.

.....

.....

[C18 - seal conviction date] On what date were you convicted?

(Required where a violence or intimidation felony is reported, to compute the firearm-disability period.)

.....

.....

[C19 - seal release dates] On what dates were you released from incarceration, from parole and from probation, whichever apply?

(Required where a violence or intimidation felony is reported. The ten years run from the latest of them.)

.....

.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under N.D.C.C. Sec. 12-60.1-02(1)(b); N.D.C.C. Sec. 12-60.1-03; N.D.C.C. Sec. 12-60.1-04; N.D.C.C. Sec. 12-60.1-01(7); N.D.C.C. Sec. 12-60.1-02(2); N.D.R.Ct. 3.4; N.D.R.Crim.P. 49.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville

39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:ND:nd-seal-felony-conviction

PROPOSED ORDER - ASK A NORTH DAKOTA COURT TO SEAL A FELONY CONVICTION

IN THE COURT
(Clerk of Court of the existing criminal case)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:
.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under N.D.C.C. Sec. 12-60.1-02(1)(b); N.D.C.C. Sec. 12-60.1-03; N.D.C.C. Sec. 12-60.1-04; N.D.C.C. Sec. 12-60.1-01(7); N.D.C.C. Sec. 12-60.1-02(2); N.D.R.Ct. 3.4; N.D.R.Crim.P. 49. The Court, having considered the petition and anything filed with it,

ORDERS that

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED

.....
(The court signs here if, and only if, it grants the petition.)

Route: obligation:track-only:ND:nd-seal-felony-conviction

PROOF OF SERVICE - ASK A NORTH DAKOTA COURT TO SEAL A FELONY CONVICTION

IN THE COURT
(Clerk of Court of the existing criminal case)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:
.....

PROOF OF SERVICE

I, Maria-Alejandra O'Shaughnessy-Whitfield, state that on the date I write beside my signing line below, and not before, I delivered a copy of the petition and of the proposed order filed with it to the person or office named here:

Name and office of the person or office to whom the papers were delivered:
.....

Address at which the papers were delivered:
.....

How the papers were delivered - by hand, by mail, or by the electronic method the court accepts:
.....

DATE SIGNATURE OF PETITIONER

(DO NOT SIGN OR DATE THIS PAGE UNTIL THE PAPERS HAVE ACTUALLY BEEN DELIVERED. A certificate signed before delivery states something that has not happened.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville
39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:ND:nd-seal-felony-conviction

FILING INSTRUCTIONS - ASK A NORTH DAKOTA COURT TO SEAL A FELONY CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Petition to Seal a Felony Conviction (N.D.C.C. Sec. 12-60.1-02(1)(b)).

A person who pled guilty to or was found guilty of a felony may petition to seal the record if they have not been convicted of a new crime for at least five years before filing. The chapter bars a felony offence involving violence or intimidation during the period in which the offender is ineligible to possess a firearm under N.D.C.C. Sec. 62.1-02-01(1)(a), which is ten years from the latest of conviction, release from incarceration, release from parole or release from probation, for offences in chapters 12.1-16 through 12.1-25.

WHERE IT GOES

Clerk of Court of the existing criminal case

Filed in the criminal case itself. The respondent is the prosecuting attorney: the office of the prosecuting official for the municipality in a municipal case, or the office of the State's Attorney for the county in a district court case. The petitioner serves the prosecuting attorney under N.D.C.C. Sec. 12-60.1-03(4), which routes through N.D.R.Crim.P. 49 to N.D.R.Civ.P. 5(b).

Venue: The existing criminal case for the offence, under N.D.C.C. Sec. 12-60.1-03(1). There is no separate civil action. District court or municipal court, whichever holds the case.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: Not established. The statewide court fee schedule effective 1 July 2025 carries no line item for a Chapter 12-60.1 petition or for a motion within an existing criminal case, and the official research guide directs the participant to ask the clerk what the fee is, if any. Fee waiver as recorded: Not established for this petition. N.D.C.C. Sec. 12-60.1-04(6) expressly makes a municipal-to-district-court appeal fee-free, which implies a fee may attach at first instance.

WHO MUST BE SERVED

Service as recorded: On the prosecuting attorney, under N.D.C.C. Sec. 12-60.1-03(4) through N.D.R.Crim.P. 49 and N.D.R.Civ.P. 5(b). The participant serves and files proof. Notice as recorded: The prosecutor must, so far as practicable, notify and seek input from law enforcement, witnesses, victims and correctional authorities under N.D.C.C. Sec. 12-60.1-04(4).

WHAT THE RECORD SAYS YOU MUST KNOW

- Sealing under Chapter 12-60.1 does not reach BCI criminal history record information or the criminal justice data system, and it does not reach federal, tribal, military, out-of-state or private-database records. The order also states that the petitioner remains subject to N.D.C.C. Sec. 12.1-33-02.1 and that the

information is released where an entity has a statutory obligation to run a background check.

- The proposed order is filed with the petition, not after it. N.D.C.C. Sec. 12-60.1-03(3) makes it mandatory and a petition without one is incomplete.
- Service on the prosecuting attorney precedes filing, and proof of service is filed with the petition.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any offence for which registration was ordered under N.D.C.C. Sec. 12.1-32-15, which the chapter excludes.
- Any impaired-driving offence, which the official guides route to the separate Sec. 39-08-01.6 seal.
- Unpaid restitution, or imprisonment or probation not yet complete.
- A new conviction inside the look-back period.
- Pending charges anywhere.
- Any objection from the prosecutor, a victim, a witness or a correctional authority.
- Out-of-state, federal, tribal or military records, which a North Dakota court cannot reach.
- Any case where the reformation or good-cause showing is the real contest.
- Any participant with immigration exposure.
- A participant whose actual goal is firearm-rights restoration.
- Every felony petition, which the controlling review makes an attorney handoff.
- Any question whether the offence involved violence or intimidation.
- Any firearm-disability computation.
- A prosecutor objection, a victim objection, or any contest over reformation ends automated assistance.
- No hearing may be held earlier than 45 days after filing unless the prosecutor stipulates. The petitioner attends and carries a clear-and-convincing burden. Attendance at that hearing is not a generation blocker; losing it is where self-help ends.

THE PAGES IN THIS SET

- nd-seal-felony-conviction-primary-filing-1: the composed petition, on this route's own statutory ground (Ask a North Dakota court to seal a felony conviction)
- nd-seal-felony-conviction-proposed-order-2: the proposed order the court may sign; every decision line is the court's and is left blank (Ask a North Dakota court to seal a felony conviction)
- nd-seal-felony-conviction-proof-of-service-3: the page on which the participant records that the papers were actually delivered, signed only after delivery (Ask a North Dakota court to seal a felony conviction)

Route: obligation:track-only:ND:nd-seal-felony-conviction

PETITION - ASK A NORTH DAKOTA COURT TO SEAL A MISDEMEANOR CONVICTION

IN THE COURT

(Clerk of Court of the existing criminal case - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

PETITION TO SEAL A MISDEMEANOR CONVICTION (N.D.C.C. Sec. 12-60.1-02(1)(A))

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under N.D.C.C. Sec. 12-60.1-02(1)(a); N.D.C.C. Sec. 12-60.1-03; N.D.C.C. Sec. 12-60.1-04; N.D.C.C. Sec. 12-60.1-01(7); N.D.C.C. Sec. 12-60.1-02(2); N.D.R.Ct. 3.4; N.D.R.Crim.P. 49 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

A person who pled guilty to or was found guilty of a misdemeanor may petition to seal the record if they have not been convicted of a new crime for at least three years before filing the petition. Sealing prohibits disclosure of the existence or contents of court and prosecution records except by court order. The three years are a look-back from filing, not a wait measured from sentence completion; completion of imprisonment and probation and payment of restitution are separate findings the court must make under Sec. 12-60.1-04(1)(c) and (d).

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - seal full legal name] What is your full legal name?

.....

.....

[C2 - seal all other names] What other names have you ever used, including maiden names and aliases?

.....

.....

[C3 - seal address history] Where have you lived from the date of the offence until now?

.....

.....

[C4 - seal reasons] In your own words, why should the court seal this record?

.....
.....

[C5 - seal court type] Was the case in district court or municipal court?

.....
.....

[C6 - seal county] Which North Dakota county or municipality?

.....
.....

[C7 - seal case number] What is the case number?

.....
.....

[C8 - seal offence] What were you convicted of?

.....
.....

[C9 - seal criminal history nd] What other North Dakota charges or convictions do you have, past or pending?

.....
.....

[C10 - seal criminal history elsewhere] What charges or convictions do you have in other states, federally, or in another country?

(Asked where the participant reports any out-of-state, federal or foreign record.)

.....
.....

[C11 - seal prior relief requests] Have you ever asked any court or authority to pardon, expunge, seal or return records for any case - whether or not it was granted?

.....
.....

[C12 - seal new convictions] Have you been convicted of any new crime since the offence, and if so when?

.....
.....

[C13 - seal supervision complete] Have you finished all imprisonment and all probation on this case?

.....

.....

[C14 - seal restitution paid] Has all restitution been paid in full?

.....

.....

[C15 - seal registration ordered] Were you ever ordered to register as an offender under North Dakota law?

.....

.....

[C16 - seal prosecutor office] Which office prosecuted the case - a city attorney or the county State's Attorney?

.....

.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under N.D.C.C. Sec. 12-60.1-02(1)(a); N.D.C.C. Sec. 12-60.1-03; N.D.C.C. Sec. 12-60.1-04; N.D.C.C. Sec. 12-60.1-01(7); N.D.C.C. Sec. 12-60.1-02(2); N.D.R.Ct. 3.4; N.D.R.Crim.P. 49.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only;ND:nd-seal-misdemeanor-conviction

PROPOSED ORDER - ASK A NORTH DAKOTA COURT TO SEAL A MISDEMEANOR
CONVICTION

IN THE COURT
(Clerk of Court of the existing criminal case)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:

.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under N.D.C.C. Sec. 12-60.1-02(1)(a); N.D.C.C. Sec. 12-60.1-03; N.D.C.C. Sec. 12-60.1-04; N.D.C.C. Sec. 12-60.1-01(7); N.D.C.C. Sec. 12-60.1-02(2); N.D.R.Ct. 3.4; N.D.R.Crim.P. 49. The Court, having considered the petition and anything filed with it,

ORDERS that

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED

.....

(The court signs here if, and only if, it grants the petition.)

Route: obligation:track-only:ND:nd-seal-misdemeanor-conviction

PROOF OF SERVICE - ASK A NORTH DAKOTA COURT TO SEAL A MISDEMEANOR
CONVICTION

IN THE COURT
(Clerk of Court of the existing criminal case)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:

.....

PROOF OF SERVICE

I, Maria-Alejandra O'Shaughnessy-Whitfield, state that on the date I write beside my signing line below,
and not before, I delivered a copy of the petition and of the proposed order filed with it to the person or
office named here:

Name and office of the person or office to whom the papers were delivered:

.....

Address at which the papers were delivered:

.....

How the papers were delivered - by hand, by mail, or by the electronic method the court accepts:

.....

DATE SIGNATURE OF PETITIONER

(DO NOT SIGN OR DATE THIS PAGE UNTIL THE PAPERS HAVE ACTUALLY BEEN
DELIVERED. A certificate signed before delivery states something that has not happened.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:ND:nd-seal-misdemeanor-conviction

FILING INSTRUCTIONS - ASK A NORTH DAKOTA COURT TO SEAL A MISDEMEANOR CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Petition to Seal a Misdemeanor Conviction (N.D.C.C. Sec. 12-60.1-02(1)(a)).

A person who pled guilty to or was found guilty of a misdemeanor may petition to seal the record if they have not been convicted of a new crime for at least three years before filing the petition. Sealing prohibits disclosure of the existence or contents of court and prosecution records except by court order. The three years are a look-back from filing, not a wait measured from sentence completion; completion of imprisonment and probation and payment of restitution are separate findings the court must make under Sec. 12-60.1-04(1)(c) and (d).

WHERE IT GOES

Clerk of Court of the existing criminal case

Filed in the criminal case itself. The respondent is the prosecuting attorney: the office of the prosecuting official for the municipality in a municipal case, or the office of the State's Attorney for the county in a district court case. The petitioner serves the prosecuting attorney under N.D.C.C. Sec. 12-60.1-03(4), which routes through N.D.R.Crim.P. 49 to N.D.R.Civ.P. 5(b).

Venue: The existing criminal case for the offence, under N.D.C.C. Sec. 12-60.1-03(1). There is no separate civil action. District court or municipal court, whichever holds the case.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: Not established. The statewide court fee schedule effective 1 July 2025 carries no line item for a Chapter 12-60.1 petition or for a motion within an existing criminal case, and the official research guide directs the participant to ask the clerk what the fee is, if any. Fee waiver as recorded: Not established for this petition. N.D.C.C. Sec. 12-60.1-04(6) expressly makes a municipal-to-district-court appeal fee-free, which implies a fee may attach at first instance.

WHO MUST BE SERVED

Service as recorded: On the prosecuting attorney, under N.D.C.C. Sec. 12-60.1-03(4) through N.D.R.Crim.P. 49 and N.D.R.Civ.P. 5(b). The participant serves and files proof. Notice as recorded: The prosecutor must, so far as practicable, notify and seek input from law enforcement, witnesses, victims and correctional authorities under N.D.C.C. Sec. 12-60.1-04(4).

WHAT THE RECORD SAYS YOU MUST KNOW

- Sealing under Chapter 12-60.1 does not reach BCI criminal history record information or the criminal justice data system, and it does not reach federal, tribal, military, out-of-state or private-database records.

The order also states that the petitioner remains subject to N.D.C.C. Sec. 12.1-33-02.1 and that the information is released where an entity has a statutory obligation to run a background check.

- The proposed order is filed with the petition, not after it. N.D.C.C. Sec. 12-60.1-03(3) makes it mandatory and a petition without one is incomplete.
- Service on the prosecuting attorney precedes filing, and proof of service is filed with the petition.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any offence for which registration was ordered under N.D.C.C. Sec. 12.1-32-15, which the chapter excludes.
- Any impaired-driving offence, which the official guides route to the separate Sec. 39-08-01.6 seal.
- Unpaid restitution, or imprisonment or probation not yet complete.
- A new conviction inside the look-back period.
- Pending charges anywhere.
- Any objection from the prosecutor, a victim, a witness or a correctional authority.
- Out-of-state, federal, tribal or military records, which a North Dakota court cannot reach.
- Any case where the reformation or good-cause showing is the real contest.
- Any participant with immigration exposure.
- A participant whose actual goal is firearm-rights restoration.
- A prosecutor objection, a victim objection, or any contest over reformation ends automated assistance.
- No hearing may be held earlier than 45 days after filing unless the prosecutor stipulates. The petitioner attends and carries a clear-and-convincing burden. Attendance at that hearing is not a generation blocker; losing it is where self-help ends.

THE PAGES IN THIS SET

- nd-seal-misdemeanor-conviction-primary-filing-1: the composed petition, on this route's own statutory ground (Ask a North Dakota court to seal a misdemeanor conviction)
- nd-seal-misdemeanor-conviction-proposed-order-2: the proposed order the court may sign; every decision line is the court's and is left blank (Ask a North Dakota court to seal a misdemeanor conviction)
- nd-seal-misdemeanor-conviction-proof-of-service-3: the page on which the participant records that the papers were actually delivered, signed only after delivery (Ask a North Dakota court to seal a misdemeanor conviction)

Route: obligation:track-only:ND:nd-seal-misdemeanor-conviction

PETITION - ASK A NORTH DAKOTA COURT TO SEAL A CONVICTION THE GOVERNOR HAS
PARDONED

IN THE COURT

(Clerk of Court of the existing criminal case - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

PETITION TO SEAL A PARDONED CONVICTION (N.D.C.C. Sec. 12-60.1-02(1)(C))

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under N.D.C.C. Sec. 12-60.1-02(1)(c); N.D.C.C. Sec. 12-60.1-03; N.D.C.C. Sec. 12-60.1-04; N.D.C.C. Sec. 12-60.1-01(7); N.D.C.C. Sec. 12-60.1-02(2); N.D.R.Ct. 3.4; N.D.R.Crim.P. 49 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

A person granted an unconditional pardon for a North Dakota conviction may petition to seal the record. This ground carries no look-back period of its own. A pardon does not remove the fact of the conviction unless the certificate of pardon says so, which is why sealing is a separate step.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - seal full legal name] What is your full legal name?

.....

.....

[C2 - seal all other names] What other names have you ever used, including maiden names and aliases?

.....

.....

[C3 - seal address history] Where have you lived from the date of the offence until now?

.....

.....

[C4 - seal reasons] In your own words, why should the court seal this record?

.....

.....

[C5 - seal court type] Was the case in district court or municipal court?

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.....

[C6 - seal county] Which North Dakota county or municipality?

.....

.....

[C7 - seal case number] What is the case number?

.....

.....

[C8 - seal offence] What were you convicted of?

.....

.....

[C9 - seal criminal history nd] What other North Dakota charges or convictions do you have, past or pending?

.....

.....

[C10 - seal criminal history elsewhere] What charges or convictions do you have in other states, federally, or in another country?

(Asked where the participant reports any out-of-state, federal or foreign record.)

.....

.....

[C11 - seal prior relief requests] Have you ever asked any court or authority to pardon, expunge, seal or return records for any case - whether or not it was granted?

.....

.....

[C12 - seal new convictions] Have you been convicted of any new crime since the offence, and if so when?

.....

.....

[C13 - seal supervision complete] Have you finished all imprisonment and all probation on this case?

.....

.....

[C14 - seal restitution paid] Has all restitution been paid in full?

.....

.....

[C15 - seal registration ordered] Were you ever ordered to register as an offender under North Dakota law?

.....
.....

[C16 - seal prosecutor office] Which office prosecuted the case - a city attorney or the county State's Attorney?

.....
.....

[C17 - seal pardon date] On what date was the pardon granted?

.....
.....

[C18 - seal pardon unconditional] Does your certificate of pardon describe the pardon as unconditional, or does it set terms and conditions?

.....
.....

[C19 - seal pardon covers conviction] Does the pardon cover the conviction you are asking the court to seal?

.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under N.D.C.C. Sec. 12-60.1-02(1)(c); N.D.C.C. Sec. 12-60.1-03; N.D.C.C. Sec. 12-60.1-04; N.D.C.C. Sec. 12-60.1-01(7); N.D.C.C. Sec. 12-60.1-02(2); N.D.R.Ct. 3.4; N.D.R.Crim.P. 49.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:ND:nd-seal-pardoned-conviction

PROPOSED ORDER - ASK A NORTH DAKOTA COURT TO SEAL A CONVICTION THE GOVERNOR HAS PARDONED

IN THE COURT
(Clerk of Court of the existing criminal case)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:

.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under N.D.C.C. Sec. 12-60.1-02(1)(c); N.D.C.C. Sec. 12-60.1-03; N.D.C.C. Sec. 12-60.1-04; N.D.C.C. Sec. 12-60.1-01(7); N.D.C.C. Sec. 12-60.1-02(2); N.D.R.Ct. 3.4; N.D.R.Crim.P. 49. The Court, having considered the petition and anything filed with it,

ORDERS that

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED

.....

(The court signs here if, and only if, it grants the petition.)

Route: obligation:track-only:ND:nd-seal-pardoned-conviction

PROOF OF SERVICE - ASK A NORTH DAKOTA COURT TO SEAL A CONVICTION THE GOVERNOR HAS PARDONED

IN THE COURT
(Clerk of Court of the existing criminal case)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:

.....

PROOF OF SERVICE

I, Maria-Alejandra O'Shaughnessy-Whitfield, state that on the date I write beside my signing line below, and not before, I delivered a copy of the petition and of the proposed order filed with it to the person or office named here:

Name and office of the person or office to whom the papers were delivered:

.....

Address at which the papers were delivered:

.....

How the papers were delivered - by hand, by mail, or by the electronic method the court accepts:

.....

DATE SIGNATURE OF PETITIONER

(DO NOT SIGN OR DATE THIS PAGE UNTIL THE PAPERS HAVE ACTUALLY BEEN DELIVERED. A certificate signed before delivery states something that has not happened.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:ND:nd-seal-pardoned-conviction

FILING INSTRUCTIONS - ASK A NORTH DAKOTA COURT TO SEAL A CONVICTION THE GOVERNOR HAS PARDONED

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Petition to Seal a Pardoned Conviction (N.D.C.C. Sec. 12-60.1-02(1)(c)).

A person granted an unconditional pardon for a North Dakota conviction may petition to seal the record. This ground carries no look-back period of its own. A pardon does not remove the fact of the conviction unless the certificate of pardon says so, which is why sealing is a separate step.

WHERE IT GOES

Clerk of Court of the existing criminal case

Filed in the criminal case itself. The respondent is the prosecuting attorney: the office of the prosecuting official for the municipality in a municipal case, or the office of the State's Attorney for the county in a district court case. The petitioner serves the prosecuting attorney under N.D.C.C. Sec. 12-60.1-03(4), which routes through N.D.R.Crim.P. 49 to N.D.R.Civ.P. 5(b).

Venue: The existing criminal case for the offence, under N.D.C.C. Sec. 12-60.1-03(1). There is no separate civil action. District court or municipal court, whichever holds the case.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: Not established. The statewide court fee schedule effective 1 July 2025 carries no line item for a Chapter 12-60.1 petition or for a motion within an existing criminal case, and the official research guide directs the participant to ask the clerk what the fee is, if any. Fee waiver as recorded: Not established for this petition. N.D.C.C. Sec. 12-60.1-04(6) expressly makes a municipal-to-district-court appeal fee-free, which implies a fee may attach at first instance.

WHO MUST BE SERVED

Service as recorded: On the prosecuting attorney, under N.D.C.C. Sec. 12-60.1-03(4) through N.D.R.Crim.P. 49 and N.D.R.Civ.P. 5(b). The participant serves and files proof. Notice as recorded: The prosecutor must, so far as practicable, notify and seek input from law enforcement, witnesses, victims and correctional authorities under N.D.C.C. Sec. 12-60.1-04(4).

WHAT THE RECORD SAYS YOU MUST KNOW

- Sealing under Chapter 12-60.1 does not reach BCI criminal history record information or the criminal justice data system, and it does not reach federal, tribal, military, out-of-state or private-database records. The order also states that the petitioner remains subject to N.D.C.C. Sec. 12.1-33-02.1 and that the information is released where an entity has a statutory obligation to run a background check.
- The proposed order is filed with the petition, not after it. N.D.C.C. Sec. 12-60.1-03(3) makes it

mandatory and a petition without one is incomplete.

- Service on the prosecuting attorney precedes filing, and proof of service is filed with the petition.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any offence for which registration was ordered under N.D.C.C. Sec. 12.1-32-15, which the chapter excludes.

- Any impaired-driving offence, which the official guides route to the separate Sec. 39-08-01.6 seal.

- Unpaid restitution, or imprisonment or probation not yet complete.

- A new conviction inside the look-back period.

- Pending charges anywhere.

- Any objection from the prosecutor, a victim, a witness or a correctional authority.

- Out-of-state, federal, tribal or military records, which a North Dakota court cannot reach.

- Any case where the reformation or good-cause showing is the real contest.

- Any participant with immigration exposure.

- A participant whose actual goal is firearm-rights restoration.

- A pardon whose conditionality is not clear on the face of the certificate.

- A pardon whose scope does not plainly cover the conviction.

- A certificate of pardon the participant cannot obtain.

- A prosecutor objection, a victim objection, or any contest over reformation ends automated assistance.

- No hearing may be held earlier than 45 days after filing unless the prosecutor stipulates. The petitioner attends and carries a clear-and-convincing burden. Attendance at that hearing is not a generation blocker; losing it is where self-help ends.

THE PAGES IN THIS SET

- nd-seal-pardoned-conviction-primary-filing-1: the composed petition, on this route's own statutory ground (Ask a North Dakota court to seal a conviction the Governor has pardoned)

- nd-seal-pardoned-conviction-proposed-order-2: the proposed order the court may sign; every decision line is the court's and is left blank (Ask a North Dakota court to seal a conviction the Governor has pardoned)

- nd-seal-pardoned-conviction-proof-of-service-3: the page on which the participant records that the papers were actually delivered, signed only after delivery (Ask a North Dakota court to seal a conviction the Governor has pardoned)

Route: obligation:track-only:ND:nd-seal-pardoned-conviction

PETITION - ASK A NORTH DAKOTA COURT TO SEAL A DUI RECORD

IN THE COURT

(Clerk of Court of the court holding the DUI case - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

PETITION TO SEAL A DRIVING UNDER THE INFLUENCE RECORD (N.D.C.C. Sec. 39-08-01.6)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under N.D.C.C. Sec. 39-08-01.6(1); N.D.C.C. Sec. 39-08-01.6(2); N.D.C.C. Sec. 12.1-32-07.1; N.D.C.C. Sec. 12.1-32-07.2; N.D.C.C. Sec. 39-08-01; N.D.C.C. Sec. 39-06.2-10 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

The court shall seal a criminal record relating to a conviction under N.D.C.C. Sec. 39-08-01, in accordance with Sec. Sec. 12.1-32-07.1 and 12.1-32-07.2, where the individual has not committed a further violation of Sec. 39-08-01 or an equivalent ordinance, or any other criminal offence, within seven years of the first violation. The seal is the Sec. 12.1-32-07.2(2) restricted-access regime: the records may be examined by the clerk, a judge, the juvenile commissioner, probation officers, the defendant or defence counsel and the state's attorney, and by others only on the written order of a judge. A prosecutor retains access to a prior offence for enhancement under Sec. 39-08-01(3).

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - dui first violation date] On what date did your first impaired-driving violation occur?

.....

.....

[C2 - dui case number] What is the case number?

.....

.....

[C3 - dui court type] Was the case in district court or municipal court?

.....
.....

[C4 - dui county] Which North Dakota county or municipality?

.....
.....

[C5 - dui conviction type] Did you plead guilty, plead no contest, or were you found guilty?

.....
.....

[C6 - dui charged under] Were you charged under the state statute or under a city ordinance?

.....
.....

[C7 - dui ordinance citation] If it was a city ordinance, which ordinance?

(Asked where the participant reports an ordinance charge, because the equivalence has to be shown.)

.....
.....

[C8 - dui subsequent dui] Have you had any further impaired-driving violation within seven years of that first one?

.....
.....

[C9 - dui other offence] Have you committed any other criminal offence within that seven-year period?

.....
.....

[C10 - dui commercial licence] Have you ever held a commercial driver's licence, now or in the past?

.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under N.D.C.C. Sec. 39-08-01.6(1); N.D.C.C. Sec. 39-08-01.6(2); N.D.C.C. Sec. 12.1-32-07.1; N.D.C.C. Sec. 12.1-32-07.2; N.D.C.C. Sec. 39-08-01; N.D.C.C. Sec. 39-06.2-10.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-pathway:ND:nd-dui-record-seal:dui-record-sealing-under-the-separate-dui-statute

PROPOSED ORDER - ASK A NORTH DAKOTA COURT TO SEAL A DUI RECORD

IN THE COURT
(Clerk of Court of the court holding the DUI case)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:
.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under N.D.C.C. Sec. 39-08-01.6(1); N.D.C.C. Sec. 39-08-01.6(2); N.D.C.C. Sec. 12.1-32-07.1; N.D.C.C. Sec. 12.1-32-07.2; N.D.C.C. Sec. 39-08-01; N.D.C.C. Sec. 39-06.2-10. The Court, having considered the petition and anything filed with it,

ORDERS that

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED

.....
(The court signs here if, and only if, it grants the petition.)

Route: obligation:track-pathway:ND:nd-dui-record-seal:dui-record-sealing-under-the-separate-dui-statute

FILING INSTRUCTIONS - ASK A NORTH DAKOTA COURT TO SEAL A DUI RECORD

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Petition to Seal a Driving Under the Influence Record (N.D.C.C. Sec. 39-08-01.6).

The court shall seal a criminal record relating to a conviction under N.D.C.C. Sec. 39-08-01, in accordance with Sec. Sec. 12.1-32-07.1 and 12.1-32-07.2, where the individual has not committed a further violation of Sec. 39-08-01 or an equivalent ordinance, or any other criminal offence, within seven years of the first violation. The seal is the Sec. 12.1-32-07.2(2) restricted-access regime: the records may be examined by the clerk, a judge, the juvenile commissioner, probation officers, the defendant or defence counsel and the state's attorney, and by others only on the written order of a judge. A prosecutor retains access to a prior offence for enhancement under Sec. 39-08-01(3).

WHERE IT GOES

Clerk of Court of the court holding the DUI case

Filed in the existing case. The official research guide directs the participant to file the petition and any accompanying documents in the DUI case with the clerk of court.

Venue: The existing impaired-driving case, in the municipal court or district court where it is filed.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: none stated by the section, and none appears in the statewide court fee schedule. Fee waiver as recorded: not applicable; no fee is identified.

WHO MUST BE SERVED

Service as recorded: None required by the section. Notice as recorded: None required by the section.

WHAT THE RECORD SAYS YOU MUST KNOW

- Expungement of DUI records is not available in North Dakota. This is sealing under the Sec. 12.1-32-07.2(2) restricted-access regime, and a prosecutor keeps access to the prior offence for enhancement under Sec. 39-08-01(3).

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any commercial driver's licence, current or historical, which the section excludes.
- Any criminal offence at all inside the seven-year window.
- Uncertainty whether the charge was under the state statute or an equivalent ordinance.
- A participant who expects the record to be expunged rather than sealed, which North Dakota does not offer for DUI.

- A prosecutor's retained enhancement access, where the participant expects it to be gone.
- An out-of-state impaired-driving conviction.
- No hearing is required, but the official guide records that the judge may hold one.

THE PAGES IN THIS SET

- nd-dui-record-seal-primary-filing-1: the composed petition, on this route's own statutory ground (Ask a North Dakota court to seal a DUI record)
- nd-dui-record-seal-proposed-order-2: the proposed order the court may sign; every decision line is the court's and is left blank (Ask a North Dakota court to seal a DUI record)

Route: obligation:track-pathway:ND:nd-dui-record-seal:dui-record-sealing-under-the-separate-dui-statute

PETITION - ASK A NORTH DAKOTA COURT TO SEAL A FIRST MARIJUANA POSSESSION
CONVICTION

IN THE COURT

(Clerk of Court of the court holding the criminal case - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

MOTION TO SEAL A FIRST MARIJUANA OR THC POSSESSION CONVICTION (N.D.C.C. Sec.
19-03.1-23(9))

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under N.D.C.C. Sec.
19-03.1-23(9); N.D.C.C. ch. 19-03.1 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Where a person pleads guilty or is found guilty of a first offence of possessing one ounce or less of
marijuana or two grams or less of tetrahydrocannabinol and a judgment of guilt is entered, the court shall,
upon motion, seal the court record of that conviction if the person is not subsequently convicted within
two years of a further violation of the chapter. Relief is mandatory on the elements, and once sealed the
record may not be opened even by order of the court, which makes this seal stronger than Chapter 12-60.1
sealing.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record
itself.

[C1 - mj judgment date] On what date did the court enter the judgment of guilt?

.....

.....

[C2 - mj offence date] On what date did the offence occur?

.....

.....

[C3 - mj substance] Was the charge marijuana or tetrahydrocannabinol?

.....
.....

[C4 - mj quantity] What quantity was charged?

.....
.....

[C5 - mj first offence] Was this your first offence of this kind?

.....
.....

[C6 - mj subsequent conviction] Have you been convicted of any further violation of North Dakota's controlled substances chapter since, and if so when?

.....
.....

[C7 - mj other charges] Were there any other charges in the same case besides the marijuana or THC possession?

.....
.....

[C8 - mj case number] What is the case number?

.....
.....

[C9 - mj county] Which North Dakota county?

.....
.....

[C10 - mj court type] Was the case in district court or municipal court?

.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under N.D.C.C. Sec. 19-03.1-23(9); N.D.C.C. ch. 19-03.1.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville

39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-pathway:ND:nd-marijuana-first-offense-seal:first-offense-possession-sealing

PROPOSED ORDER - ASK A NORTH DAKOTA COURT TO SEAL A FIRST MARIJUANA
POSSESSION CONVICTION

IN THE COURT
(Clerk of Court of the court holding the criminal case)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:

.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under N.D.C.C. Sec. 19-03.1-23(9);
N.D.C.C. ch. 19-03.1. The Court, having considered the petition and anything filed with it,

ORDERS that

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition
for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by
this packet.)

DATED

.....

(The court signs here if, and only if, it grants the petition.)

Route: obligation:track-pathway:ND:nd-marijuana-first-offense-seal:first-offense-possession-sealing

WHAT SEALING DOES, AND WHAT IT DOES NOT DO

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THE ORDER DOES

A sealing order under chapter 19-03.1 seals the court record in this case. The statute is unusually strong on this point: once sealed, the court record may not be opened even by court order.

WHAT IT DOES NOT REACH

The order is directed at the court record. It does not by itself change records held by other agencies, and it is not a pardon. If you need a criminal-history record corrected as well, that is a separate request to the agency that holds it.

THIS IS NOT THE GENERAL SEALING CHAPTER

North Dakota's general criminal-record sealing chapter, 12-60.1, uses waiting periods of three years for a misdemeanor and five for a felony, a clear-and-convincing burden, and a hearing no earlier than forty-five days after filing. None of that applies here. Chapter 19-03.1 makes sealing mandatory on motion when its own conditions are met.

Route: obligation:track-pathway:ND:nd-marijuana-first-offense-seal:first-offense-possession-sealing

FILING INSTRUCTIONS - ASK A NORTH DAKOTA COURT TO SEAL A FIRST MARIJUANA POSSESSION CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Motion to Seal a First Marijuana or THC Possession Conviction (N.D.C.C. Sec. 19-03.1-23(9)).

Where a person pleads guilty or is found guilty of a first offence of possessing one ounce or less of marijuana or two grams or less of tetrahydrocannabinol and a judgment of guilt is entered, the court shall, upon motion, seal the court record of that conviction if the person is not subsequently convicted within two years of a further violation of the chapter. Relief is mandatory on the elements, and once sealed the record may not be opened even by order of the court, which makes this seal stronger than Chapter 12-60.1 sealing.

WHERE IT GOES

Clerk of Court of the court holding the criminal case

Filed as a motion in the existing case. The subsection states no service requirement and no hearing requirement.

Venue: The existing criminal case in the court that entered the judgment.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: none identified. The statewide fee schedule carries no line item for a motion in an existing criminal case. Fee waiver as recorded: not applicable; no fee is identified.

WHO MUST BE SERVED

Service as recorded: None stated by the subsection. Notice as recorded: None stated by the subsection.

WHAT THE RECORD SAYS YOU MUST KNOW

- This seal is irreversible: once sealed the court record may not be opened even by order of the court. The participant should keep their own copies of anything they may later need.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any uncertainty whether this was a first offence.
- Any uncertainty about the quantity charged.
- A subsequent controlled-substance conviction.
- Other charges in the same case, which the subsection does not reach.
- A participant confusing this with the executive marijuana pardon, which is an entirely separate process.

THE PAGES IN THIS SET

- nd-marijuana-first-offense-seal-primary-filing-1: the composed petition, on this route's own statutory ground (Ask a North Dakota court to seal a first marijuana possession conviction)
- nd-marijuana-first-offense-seal-proposed-order-2: the proposed order the court may sign; every decision line is the court's and is left blank (Ask a North Dakota court to seal a first marijuana possession conviction)
- nd-marijuana-first-offense-seal-legal-effect-explanation-3: what the sealing order does, what it does not reach, and why the general sealing chapter does not apply (Ask a North Dakota court to seal a first marijuana possession conviction)

Route: obligation:track-pathway:ND:nd-marijuana-first-offense-seal:first-offense-possession-sealing